

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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WILLIE BADGER; CECELIA BADGER; NICOLE
BADGER; and YOLANDA BADGER,

Plaintiffs, **SECOND AMENDED
COMPLAINT**

-against-

THE CITY OF NEW YORK; COMMISSIONER
RAYMOND W. KELLY; SGT. JOSEPH ORRICO, Shield
4738; P.O. MARK HOLDER, Shield # 31798; P.O.
LUCIOUS JOHNSON, Shield # 24081; P.O. ROBERT
NUMSSEN, Shield # 21359; P.O. DANIEL SAID, Shield #
20422; DET. SAED RABAH, Shield # 7607; and P.O.
CHRISTOPHER SMITH, Shield # 6823, the individual
defendants sued individually and in their official capacities,

06 CV 6003 (RJD) (RLM)

ECF Case

Jury Trial Demanded

Defendants.

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PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiffs seek relief for the violation of their rights secured by 42 U.S.C. §§ 1983 and 1985(3), and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York. The claims arise from an incident, which occurred on or about August 11, 2005. During the incident the City of New York and members of the New York City Police Department (“NYPD”) subjected plaintiffs to, among other things, false arrest and imprisonment, excessive force, unlawful search and seizure, unconstitutional conditions of confinement, malicious prosecution, assault and battery, conversion of chattels, denial of medical care, intentional and negligent infliction of emotional distress, retaliation for free speech, fabricated evidence, conspiracy, harassment, abuse of process, gross negligence, negligent hiring and retention of incompetent and unfit employees, negligent supervision, training and instruction of employees,

and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiffs seek compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1985(3), and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by the aforesaid statutes and 28 U.S.C. §§ 1331 and 1343.

3. Plaintiffs invoke the supplemental jurisdiction of this Court pursuant to 28 U.S.C. § 1367 to hear and decide claims arising under state law. A notice of claim was duly filed on the City of New York within 90 days of the incident at issue, more than 30 days have elapsed since such filing and the City has refused to settle plaintiffs' claims. Moreover, this action has been filed within one year and 90 days of the incidents that are the basis of this claim.

4. Venue is proper here pursuant to 28 U.S.C. § 1391 because some of the acts in question occurred in Kings County, and the City of New York is subject to personal jurisdiction in the Eastern District of New York.

PARTIES

5. Plaintiff Willie Badger is a citizen of the State of New York, Kings County.

6. Plaintiff Cecelia Badger is a citizen of the State of New York, Kings County.

7. Plaintiff Nicole Badger is a citizen of the State of New York, Kings County.

8. Plaintiff Yolanda Badger is a citizen of the State of New York, Kings County.

9. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiffs' rights as described herein.

10. Defendant Raymond W. Kelly is the Commissioner of the NYPD who violated plaintiffs' rights as described herein.

11. Defendant Joseph Orrico is a New York City Police Sergeant, assigned Shield # 4738, employed with the 71st Precinct, and/or "NAR BBS" located in Brooklyn, New York who violated plaintiffs' rights as described herein.

12. Defendant Mark Holder is a New York City Police Officer, assigned Shield # 31798, employed with the 71st Precinct, and/or "NAR BBS" located in Brooklyn, New York who violated plaintiffs' rights as described herein.

13. Defendant Lucious Johnson is a New York City Police Officer, assigned Shield # 24081, employed with the 71st Precinct, and/or "NAR BBS" located in Brooklyn, New York who violated plaintiffs' rights as described herein.

14. Defendant Robert Numssen is a New York City Police Officer, assigned Shield # 21359, employed with the 71st Precinct, and/or "NAR BBS" located in Brooklyn, New York who violated plaintiffs' rights as described herein.

15. Defendant Daniel Said is a New York City Police Officer, assigned Shield # 20422, employed with the 71st Precinct, and/or "NAR BBS" located in Brooklyn, New York who violated plaintiffs' rights as described herein.

16. Defendant Saed Rabah is a New York City Police Detective, assigned Shield # 7607, employed with the 71st Precinct, and/or “NAR BBS” located in Brooklyn, New York who violated plaintiffs’ rights as described herein.

17. Defendant Christopher Smith is a New York City Police Officer, assigned Shield # 6823, employed with the 71st Precinct, and/or “NAR BBS” located in Brooklyn, New York who violated plaintiffs’ rights as described herein.

18. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

19. The following is a summary set forth for the purpose of demonstrating, averring, and providing notice of plaintiffs’ claims against the defendants. Plaintiffs have not set forth each and every fact concerning the incident(s) described below.

20. On August 11, 2005, at approximately 1:00 p.m. to 2:00 p.m. at 1180 President Street, Apt. 11, Brooklyn, New York, several police officers, including Sgt. Orrico, P.O. Holder, P.O. Johnson, P.O. Numssen, P.O. Said, Det. Rabah, and P.O. Smith committed the following illegal acts against plaintiffs.

21. Plaintiffs were in their home located at 1180 President Street, Apt. 11, Brooklyn, New York, when Sgt. Orrico, P.O. Holder, P.O. Johnson, P.O. Numssen, P.O. Said, Det. Rabah, and P.O. Smith unlawfully entered their home without an arrest or search warrant, reasonable suspicion, or probable cause that either plaintiffs (or any third person) had committed any crime and falsely arrested plaintiffs.

22. Defendants Sgt. Orrico, P.O. Holder, P.O. Johnson, P.O. Numssen, P.O. Said, Det. Rabah, and P.O. Smith broke into plaintiffs’ home, damaging their front door.

23. Once inside, defendants Sgt. Orrico, P.O. Holder, P.O. Johnson, P.O. Numssen, P.O. Said, Det. Rabah, and P.O. Smith drew their firearms at plaintiffs.

24. During the arrest of plaintiff Willie Badger (a 61 year-old man who offered no resistance to the defendant officers' actions), defendants Sgt. Orrico, P.O. Holder, P.O. Johnson, P.O. Numssen, P.O. Said, Det. Rabah, and P.O. Smith, at times independently and at times in concert, maliciously, gratuitously, and unnecessarily kicked plaintiff several times in the body before he was handcuffed, grabbed and twisted plaintiff's arms, subjected plaintiff to excessively tight handcuffs, and kicked plaintiff several times after he was handcuffed. Those defendants who did not touch plaintiff witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

25. During the arrest of plaintiff Cecelia Badger (a 58 year-old woman who offered no resistance to the defendant officers' actions), Sgt. Orrico, P.O. Holder, P.O. Johnson, P.O. Numssen, P.O. Said, Det. Rabah, and P.O. Smith, at times independently and at times in concert, maliciously, gratuitously, and unnecessarily grabbed and shoved plaintiff on the floor, and twisted plaintiff's arms, and subjected plaintiff to excessively tight handcuffs. Those defendants who did not touch plaintiff witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

26. During the arrest of plaintiff Nicole Badger (a 22 year-old woman who offered no resistance to the defendant officers' actions), defendants Sgt. Orrico, P.O. Holder, P.O. Johnson, P.O. Numssen, P.O. Said, Det. Rabah, and P.O. Smith, at times independently and at times in concert, maliciously, gratuitously, unnecessarily grabbed and twisted plaintiff's arms, forced plaintiff to the floor, and subjected plaintiff to excessively tight handcuffs. Those

defendants who did not touch plaintiff witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

27. During the arrest of plaintiff Yolanda Badger (a 18 year-old woman who offered no resistance to the defendant officers' actions), defendants Sgt. Orrico, P.O. Holder, P.O. Johnson, P.O. Numssen, P.O. Said, Det. Rabah, and P.O. Smith, at times independently and at times in concert, maliciously, gratuitously, and unnecessarily grabbed and twisted plaintiff's arms, and subjected plaintiff to excessively tight handcuffs. Those defendants who did not touch plaintiff witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

28. Thereafter defendants Sgt. Orrico, P.O. Holder, P.O. Johnson, P.O. Numssen, P.O. Said, Det. Rabah, and P.O. Smith unlawfully searched plaintiffs' home located at 1180 President Street, Apt. 11, Brooklyn, New York for approximately one hour, utilizing a dog during the search.

29. During the search, defendants Sgt. Orrico, P.O. Holder, P.O. Johnson, P.O. Numssen, P.O. Said, Det. Rabah, and P.O. Smith damaged plaintiffs' personal property, including clothing and furniture.

30. During the search, defendants Sgt. Orrico, P.O. Holder, P.O. Johnson, P.O. Numssen, P.O. Said, Det. Rabah, and P.O. Smith confined the plaintiffs to the hallway outside their apartment located at 1180 President Street, Apt. 11, Brooklyn, New York, in excessively handcuffs, causing further physical injury to plaintiffs.

31. During the search, plaintiff Yolanda Badger repeatedly asked defendants Sgt. Orrico, P.O. Holder, P.O. Johnson, P.O. Numssen, P.O. Said, Det. Rabah, and P.O. Smith for her prescription medication, including digoxin, which helps plaintiff's heart to beat more strongly and regularly. Digoxin is used to treat conditions such as congestive heart failure and

atrial fibrillation/atrial flutter. Plaintiff Yolanda Badger suffers from a serious medical condition, namely cardiomyopathy, colloquially known as having “a hole in heart.” Defendants ignored plaintiff’s requests and also refused to allow plaintiff to take her medication with her when she was removed to the 71st Precinct and Brooklyn Central Booking.

32. During the search, plaintiff Cecelia Badger who suffers from high blood pressure felt extremely ill and blood pressure and sugar level became elevated.

33. Defendants Sgt. Orrico, P.O. Holder, P.O. Johnson, P.O. Numssen, P.O. Said, Det. Rabah, and P.O. Smith recovered no narcotics, weapons, illegal instrumentalities and/or contraband at 1180 President Street, Apt. 11, Brooklyn, New York.

34. Defendants Sgt. Orrico, P.O. Holder, P.O. Johnson, P.O. Numssen, P.O. Said, Det. Rabah, and P.O. Smith searched plaintiffs at 1180 President Street, Apt. 11, Brooklyn, New York and recovered no narcotics, weapons, illegal instrumentalities, and/or contraband from plaintiffs.

35. Thereafter, defendants Sgt. Orrico, P.O. Holder, P.O. Johnson, P.O. Numssen, P.O. Said, Det. Rabah, and P.O. Smith transported plaintiff Willie Badger, Yolanda Badger, and Nicole Badger to the 71st Precinct in Brooklyn, New York where they thoroughly searched and processed before being transported to Brooklyn Central Booking.

36. While at the 71st Precinct, Sgt. Orrico, P.O. Holder, P.O. Johnson, P.O. Numssen, P.O. Said, Det. Rabah, and P.O. Smith continue to deny medical treatment to plaintiff Yolanda Badger even though she repeatedly asked for her medication.

37. While plaintiffs Willie Badger, Nicole Badger and Yolanda Badger were incarcerated at the 71st Precinct and Brooklyn Central Booking awaiting arraignment, the defendants pursuant to a conspiracy, falsely and maliciously told the Kings County District

Attorney's Office that they had committed a crime; however, the Kings County District Attorney's Office declined to prosecute plaintiff and they were released without being charged from Central Booking approximately different times (Willie Badger on August 12, 2005 at 3:00 a.m.; Nicole Badger on August 12, 2005 at 10:00 p.m.; and Yolanda Badger on August 12, 2005 at 10:00 p.m.).

38. While at Brooklyn Central Booking plaintiffs Willie Badger, Nicole Badger, and Yolanda Badger were subjected to depraved, filthy, and inhumane conditions of confinement, including overcrowding, temperature extremes, and toilet facilities that overflowed onto the floor.

39. The guards and personnel assigned to Central Booking looked the other way at these dangerous conditions, and ignored arrestees, including plaintiff Leslie Prince, who sought their assistance.

40. In addition, the guards and personnel assigned to Central Booking continue to deny medical treatment to plaintiff Yolanda Badger even though she repeatedly asked for her medication.

41. Defendant Sgt. Orrico supervised P.O. Holder, P.O. Johnson, P.O. Numssen, P.O. Said, Det. Rabah, and P.O. Smith in the above-detailed unlawful conduct, including approving plaintiffs' false arrests.

42. The individual defendants acted in concert committing these illegal acts against plaintiffs.

43. Plaintiffs did not resist arrest at any time during the above incidents.

44. Plaintiffs did not engage in suspicious, unlawful or criminal activity prior to or during the above incidents.

45. The individual defendants did not observe plaintiffs engaged in suspicious, unlawful, or criminal conduct at any time prior to or during the above incidents.

46. At no time prior to or during the above incidents were the individual defendants provided with information or in receipt of a credible or an objectively reasonable complaint from a third person, that plaintiffs had engaged in suspicious, unlawful or criminal conduct.

47. The aforesaid events were not an isolated incident. Defendants Commissioner Raymond W. Kelly and Sgt. Orrico have been aware (from lawsuits, notices of claim and complaints filed with the Civilian Complaint Review Board) that many of the NYPD's officers are insufficiently trained on the proper way to use force, search arrestees, and treat innocent and/or uninvolved individuals who are found at an incident scene and/or investigation location. Commissioner Raymond W. Kelly and Sgt. Orrico are further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, Commissioner Raymond W. Kelly and Sgt. Orrico have failed to take corrective action. This failure caused the officers in the present case to violate the plaintiffs' civil rights.

48. Moreover, Commissioner Raymond W. Kelly and Sgt. Orrico were aware prior to the incident that the defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as police officers. Despite such notice, Commissioner Raymond W. Kelly and Sgt. Orrico have retained these officers, and failed to adequately train and supervise them.

49. As a result of defendants' actions plaintiffs experienced personal and physical injuries (including contusions, abrasions, swelling, exacerbation of serious medical

conditions), pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

**FEDERAL AND STATE CLAIMS AGAINST
THE INDIVIDUAL DEFENDANTS**

50. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

51. The conduct of defendant officers, as described herein, amounted to false arrest and imprisonment, excessive force, unlawful search and seizure, unconstitutional conditions of confinement, malicious prosecution, assault and battery, conversion of chattels, denial of medical care, intentional and negligent infliction of emotional distress, retaliation for free speech, fabricated evidence, conspiracy, harassment, abuse of process, gross negligence, negligent hiring and retention of incompetent and unfit employees, negligent supervision, training and instruction of employees, and implementation and continuation of an unlawful municipal policy, practice, and custom.

52. The conduct of the defendant officers, as described herein, violated plaintiffs' rights under 42 U.S.C. §§ 1983 and 1985(3), the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and New York State law, by committing false arrest and imprisonment, excessive force, unlawful search and seizure, unconstitutional conditions of confinement, malicious prosecution, assault and battery, conversion of chattels, denial of medical care, intentional and negligent infliction of emotional distress, retaliation for free speech, fabricated evidence, conspiracy, harassment, abuse of process, gross negligence, negligent hiring and retention of incompetent and unfit employees, negligent supervision, training and instruction of employees, and implementation and continuation of an unlawful municipal policy, practice, and custom.

53. Defendants acted under pretense and color of state law and their individual and official capacities and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiffs of their rights secured by 42 U.S.C. §§ 1983 and 1985(3), the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution and New York State law.

54. As a direct and proximate result of the misconduct and abuse detailed above, plaintiffs experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, and humiliation.

55. The plaintiffs are also entitled to receive punitive damages because defendants' actions were motivated by extreme recklessness and indifference to the plaintiffs' rights.

**FEDERAL AND STATE CLAIMS AGAINST
DEFENDANT KELLY**

56. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

57. Defendants Raymond W. Kelly is liable in his official capacity, to plaintiffs because: (1) he created and allowed to continue a policy or custom under which unconstitutional practices occurred, (2) he was grossly negligent in supervising subordinates who committed the wrongful acts, and (3) he exhibited deliberate indifference to the rights of others by failing to act on information indicating that unconstitutional acts were occurring.

58. Upon information and belief, defendant Kelly was aware from notices of claim, lawsuits, complaints, and the NYPD's own observations that the officers sued in the

present case were unfit to be police officers, and that it was highly likely that they would commit the acts alleged in the present case.

59. Nevertheless, defendant Kelly exercised deliberate indifference by failing to take remedial action.

60. The aforesaid conduct by defendant Kelly violated plaintiffs' rights under 42 U.S.C. §§ 1983 and 1985(3), and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and New York State law, by failing to re-train the defendant subordinate officers, failing to adequately discipline the defendant subordinate officers, failing to adequately investigate prior complaints against the defendant subordinate officers either at the facilities where the incidents occurred, or at his Headquarters located in New York, New York, and creating a culture where officers are encouraged to harass and assault those who question their authority, and acting in manner which amounted to negligent hiring, training, monitoring and retention of incompetent employees, in violation of state law.

61. As a direct and proximate result of the misconduct and abuse detailed above, plaintiffs experienced personal and physical injuries, pain and suffering, fear, psychological pain, emotional distress, mental anguish, embarrassment, and humiliation.

62. The aforesaid conduct of defendant Kelly amounted to negligent hiring, training, monitoring and retention of incompetent employees, in violation of state law.

**FEDERAL AND STATE CLAIMS AGAINST
THE CITY OF NEW YORK**

63. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

64. The City of New York directly caused the constitutional violations suffered by plaintiffs.

65. Upon information and belief, the City of New York was aware from notices of claim, lawsuits, complaints, and from NYPD's own observations, that the officers involved in the present case were unfit to be police officers, and that it was highly likely that they would commit the acts alleged in the present case.

66. Nevertheless, the City of New York exercised deliberate indifference by failing to take remedial action. The City of New York failed to properly train, re-train, supervise, discipline, monitor, and improperly utilized and retained these officers. Moreover, the City of New York failed to adequately investigate prior complaints against the officers and created a culture where officers can harass and assault citizens without consequence. Indeed, when citizens file complaints against officers, the City has a practice of failing to substantiate or address the complaint, even under circumstances where the complaint is corroborated and credible, and the account given by the officer is unworthy of belief.

67. The aforesaid conduct by the City of New York violated plaintiffs' rights under 42 U.S.C. §§ 1983 and 1985(3), and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

68. Moreover, the aforesaid conduct by the City of New York amounted to negligent hiring, training, monitoring and retention of incompetent employees, in violation of state law.

69. Finally, under state law, the City of New York is responsible for its employees' actions under the doctrine of respondeat superior.

WHEREFORE, plaintiffs demand a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees;
- d. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

DATED: New York, New York
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